
Journal

2010 CLC 87

Court

LAHORE HIGH COURT

Date

2009-04-27

Appeal No.

WRIT PETITION NO. 6226 OF 2005,

Judge

PERVAIZ INAYAT MALIK

PartiesMST. GHULAM SHAHEENA (PETITIONER) VERSUS JUDGE, FAMILY COURT
(RESPONDENT)

LawyersHAJI MUHAMMAD ABBAS V. MRS. NAILA TARANUM JAMSHED AND 4 OTHERS 2001 PCR.U
628 DISTINGUISHED.FTMUHAMMAD RAMZAN KHALID JOIYA FOR PETITIONER. *. *-H_
MUHAMMAD MAHMOOD ASHRAF KHAN FOR RESPONDENT NO.2..

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 5 AND SCHEDULE

Judgment

r PERVAIZ INAYAT MALIK, J.- The petitioner calls in question the order dated 15-7-200S, passed by the learned Judge Family "™ i Court Jatoi District, Muzaffargarh vide which application filed by petitioner, seeking dismissal of suit filed by respondent No.2 Mst.

Kausar Parveen, was dismissed.

2. Briefly stated facts as those emerge put of this petition are that respondent No.2 wife of respondent No.3 Mumtaz Hussain Khan filed a suit for recovery of dower which was a house consisting of three rooms situated in Mauza Kotla Band Ali Tehsil Jatoi, District Muzaffargarh. On the strength of relevant' column of Nikahnama and Registered Deed bearing No. 1437 dated 9-10-1989.

. Since the said house was in possession of the petitioner and respondents Nos.3 to 5, therefore, possession of the same was also claimed. The said suit was filed in the family Court of Muzaffargarh which was contested by the petitioner by filing written statement wherein she took certain preliminary objections including lack of jurisdiction. Since the oral objection was also raised by the learned counsel for the defendant/petitioner that the suit was triable by the Civil Court and the Family Court lacked jurisdiction, with the prayer that the same may be decided before proceeding further, therefore, the learned Judge Family Court heard the arguments on the point of jurisdiction .whereafter vide the impugned order dated 15-7-2005, the objection of the learned counsel for the present petitioner was rejected by holding that the Family Court had ample powers to adjudicate upon the suit which has been assailed through this Constitutional petition. .

there is a dispute of ownership, therefore, the learned Civil Court has the exclusive jurisdiction. That the jurisdiction assumed by the learned Judge Family Court is in utter disregard Of provisions of section 5 of the Family Court Act (XXXV of 1964); that the petitioner is the owner in possession of the house in question, therefore, cannot be deprived from -m her valuable property. Lastly contends that the suit filed by respondent No.2 was collusive with, respondent No.3, therefore, should have been dismissed on this score alone; adds that in any case the controversy cannot be resolved without framing proper issue on the sybject; places reliance upon 2000 MLD 1638. . .

'1 5. Conversely Mr. Muhammad Mehmood Ashraf Khan, the learned counsel for the contesting respondent No.2 vehemently controverts the submissions made at Bar by the learned counsel for the petitioner and with vehemence argues that this' was not at all a dispute which could be adjudicated upon by a Court of general civil jurisdiction and that the matter involved recovery of Haq-ul-Mahar, therefore, in view of provisions of section 5 of the West Pakistan Family Courts Act (XXXV of 1964) exclusive jurisdiction vests in the learned Family Court, therefore, the suit filed by the respondent No.2 before the learned Judge Family Court is competent. Reliance is placed upon 1997 SCMR 1122 wherein the Honourable Supreme Court of Pakistan in somewhat similar circumstances declined to interfere in the concurrent findings arrived at by the Courts below by observing that the Family Court in view of provisions of section 5 of the West Pakistan Family Courts Act (XXXV. of 1964) was empowered to entertain and decide such suits including the one for recovery of immovable property given as dower to the wife. The learned counsel for the respondent has also referred to some judgments of this Court whereinab.ove principle, of law laid down by the Honourable t Supreme Court of Pakistan was respectfully followed.

h 4 * h.

S. Arguments heard. Record perused.

' I 6. The controversy revolves around interpretation of section 5 of the West Pakistan Family Courts Act (XXXV) of 1964 which is reproduced as under:- .

I " P Jurisdiction.- Subject to the provisions of the Muslim Family Laws Ordinance,. 1961,. and the Conciliation Courts Ordinance, entertain, hear and adjudicate upon matters specified in {Part 1 of the Schedule}. 1 h * (2) Notwithstanding anything contained in the Code of Criminal Procedure, 1988 (Act V of 1898), the Family Court shall have, jurisdiction. to try the offences specified in Part-II of the Schedule, where one of the spouses is victim of an offence committed by the other. .

(3) The High Court may with the approval of the Government, V.

amend the Schedule so as to alter, delete or add any entry thereto.} . - 7. Judgment relied upon by Mr. Muhammad Khalid Joiya, Advocate for the petitioner Haji Muhammad Abbas v. Mrs. Naila Taranum Jamshed and 4 others 2001 PCr.LJ 628 has no relevance with i the case in hand. Principle of law laid down here is in respect of powers of High Court under section 561-A, Cr.P.C., which are inherent, unbridled and wide enough, so as to arrest and rectify any abuse of process of Court and to make such orders as may be necessary to secure the ends of justice. Secondly in the referred case in view of peculiar circumstances matter was referred back to the authorities concerned for j holding proper inquiry in the matter. I have not been able to understand * as to how this case is relevant, to one in hand.

* r i > I 8. The judgment referred to supra by Mr. Muhammad Mahmood Ashraf Khan, the learned counsel for the respondent cited as 1997 SCMR 1122, which has also been relied upon by the learned lower Court, is fully attracted in view of peculiar facts and circumstances of the case arid resolves the controversy, para. No.3 whereof is reproduced hereunder for favour of convenience:- i .

i - "We have considered the submission made by the learned counsel for the parties carefully. We do not agree with the learned counsel for the petitioner. A plain reading of section 5 of the Family Courts Act, 1964 (W.P. Act XXXV of 1964) will ' show that the Judge Family Court alone was competent to entertain a suit for the recovery of the property given as dower to the wife at the time of marriage. Learned counsel has failed to quote any provision of law restraining Judge Family Court to * entertain suit for the recovery of immovable property given as dower to a wife. The three Courts below have believed the oral .« * evidence as well as Kabinnama Exh.P. 1 and Nikahnama p Exh.P.3. Learned counsel has failed to point out any misreading or non-reading of evidence by the Courts b'elow". The Judge Family Court has not flouted any relevant provision of law eitner Learned Additional District Judge and the High Court as well were fully justified in dismissing the appeal and the Constitution petition respectively.

f .

' * Leave to appeal is, therefore, refused and the petition is dismissed. Leave refused." 9. The afore-stated provisions of law and the judgment of Honourable Supreme Court of Pakistan fully clinches the matter, I am, therefore, of the considered view that the suit filed by respondent No.2 Mst. Parveen Kausar for possession of the house given to her in consideration of dower is competent before Family Court 1 * K T . 10. Resultantly the impugned order is upheld, with a direction to the learned respondent No.1 to proceed in the matter further in accordance with law.

11. Since it is a family matter pending for the last about four years, therefore, the learned Judge

Family Court is further directed to decide the suit expeditiously preferably within a period of four months.

j r 12. With these observations, this petition being devoid of any merits, is hereby dismissed in limine, with no order as to costs. .

Petition dismissed in limine.

S.A.K./G-35/L

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